		PAGA penalties in the amount of $52,165.10 shall be allocated as follows: sixty-five percent (65%), or $33,907.32, payable to the Labor and Workforce Development Agency (LWDA); and thirty-five percent (35%), or $18,257.78, payable to the Aggrieved Employees in accordance with the terms of the Settlement Agreement. Final Accounting is set for 5/20/2027, at 2:00 p.m. in Department CX102. Counsel shall submit the final report of the settlement administrator regarding the status of the settlement administration no later than sixteen (16) court days prior to the hearing. The final report must include all information necessary for the Court to determine the total amount of the settlement funds actually paid to the Aggrieved Employees and all others in accordance with the Settlement, as well as the amount of unclaimed funds, if any, remitted to the State Controller's Unclaimed Property Fund/the cy pre recipient. If the settlement funds are not completely disbursed by the report deadline, counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiff to give notice of this ruling, including to the LWDA, within five (5) court days, and file proof of service.
110	**Balt USA, LLC vs. Treadstone Medical LLC** **2021-01237081**	**1. Ex Parte re. continuing trial & toll 5-year rule** **2. Status Conference** **1. Disposition** Plaintiff Balt USA, LLC's motion to continue trial and to extend the five-year deadline is GRANTED. The Court continues the trial to Monday, April 26, 2027, and finds, for the reasons stated below, that the five-year period within which this action must be brought to trial under Code of Civil Procedure section 583.310 is extended so that a trial commencing on that date is timely. The Court sets the pretrial critical-path deadlines specified in Part 5. **2. Procedural Posture; the Ex Parte Objection Is Overruled** Balt initially sought this relief by ex parte application. At the hearing on that application the Court declined to grant relief on an emergency basis, but rather than deny the request it ordered the ex parte application to stand as the moving papers and set an expedited briefing schedule so that the continuance and five-year questions could be decided as a noticed motion on a developed record. (Notice re Matters Set at Aug. 20, 2026 Hearing (ROA 2134).) Defendants filed a full opposition on August 27, 2026, Balt filed its reply on September 1, 2026, and the matter was heard September 3, 2026. Defendants renew their contention that the relief is procedurally improper because it was first presented ex parte and on shortened notice. (Defs.' Opp. (ROA 2188).) That objection is overruled. The Court did not decide

the merits ex parte; it converted the application into moving papers and afforded Defendants a full and fair opportunity to be heard through a complete opposition brief, a supporting declaration, and oral argument. California Rules of Court, rule 3.1332(b), expressly permits a continuance request to be made "by a noticed motion or an ex parte application," and the process the Court ordered satisfied every purpose of the notice rules. Balt likewise included a notice of motion in its papers. (Reply (ROA 2212).)

Defendants identify no prejudice traceable to the procedure as opposed to the substance, and their own proposed summary-judgment and discovery schedule contemplated comparably compressed briefing. The Court also declines to treat the motion as a barred motion for reconsideration under Code of Civil Procedure section 1008: the July 30 amendment adding the trade secret claims, the parties' post-amendment conduct, and the newly surfaced discovery record are materially different circumstances. The motion is properly before the Court and is decided on its merits.

3. Legal Standard

Continuance. Although continuances are disfavored and the Court may grant one only on an affirmative showing of good cause, good cause expressly includes the addition of a new claim or party where the parties have not had a reasonable opportunity to conduct discovery and prepare for trial, a party's excused inability to obtain material evidence despite diligent efforts, and a significant, unanticipated change leaving the case not ready for trial. (Cal. Rules of Court, rule 3.1332(c).)

Five-year rule. An action must be brought to trial within five years after it is commenced. (Code Civ. Proc., § 583.310.) The requirement is mandatory, and dismissal follows if it is not met, "except as expressly provided by statute." (Code Civ. Proc., § 583.360, subd. (b).) The governing exception here is section 583.340(c): the Court must exclude the time during which "[b]ringing the action to trial, for any other reason, was impossible, impracticable, or futile." (Code Civ. Proc., § 583.340, subd. (c).)

The trial court determines impossibility, impracticability, or futility "in light of all the circumstances in the individual case, including the acts and conduct of the parties and the nature of the proceedings themselves," with reasonable diligence the critical factor; the plaintiff must show a circumstance of impracticability, a causal connection to the inability to move the case to trial, and reasonable diligence at all stages. (Bruns v. E-Commerce Exchange, Inc. (2011) 51 Cal.4th 717, 730–731.) The plaintiff bears the burden, and the standard asks whether trial was impracticable "due to causes beyond [the plaintiff's] control." (Id. at p. 731.)

Impracticability is not equated with strict impossibility; it reaches "excessive and unreasonable difficulty or expense" measured on the practical circumstances of the case. (Brunzell Constr. Co. v. Wagner

(1970) 2 Cal.3d 545, 551–552.) The purpose of the statute is to prevent avoidable delay, "not . . . arbitrarily to close the proceeding at all events in five years." (Moran v. Superior Court (1983) 35 Cal.3d 229, 237–238.) Its tolling provisions are liberally construed consistent with the policy favoring trial on the merits. (Seto v. Szeto (2022) 86 Cal.App.5th 76, 85.)

4. Analysis

A. Good Cause Supports a Continuance

The Court granted Balt leave to add trade secret claims by the Fourth Amended Complaint on July 30, 2026, less than five months before the December 7, 2026 trial date. (4th Am. Compl., filed July 31, 2026.) The addition of those claims is a significant, recent change in the shape of the case, and neither side has had a reasonable opportunity to complete fact and expert discovery on them within the current schedule. That alone is good cause under California Rules of Court, rule 3.1332(c)(5) and (c)(7).

The record confirms the case is not ready for trial for reasons independent of any single dispute:

First, trade secret discovery is gated on a designation dispute set for September 11, 2026. Before commencing trade-secret discovery, Balt must identify its trade secrets with reasonable particularity. (Code Civ. Proc., § 2019.210.) Sonorous has moved for a protective order and to strike Balt's Amended section 2019.210 disclosure, contending it does not meet that standard. (Sonorous Mot. for Protective Order & to Strike (ROA 2182).) Until that motion is resolved, discovery directed to the trade secrets cannot meaningfully proceed. The Court expresses no view on the merits of Sonorous's motion; its pendency is itself a practical obstacle to readiness.

Second, discovery disputes remain pending before the Referee that exist regardless of the trade secret claims. The parties' August 31, 2026 joint status report reflects that roughly 115 repositories within the scope of the Forensic Neutral's review had not been provided, and that the parties remain at impasse over the sufficiency of Defendants' showings — a dispute rooted in the pre-existing document-production process, not the new claims. (Joint Status Report re Outstanding Repositories (ROA 2210).) The volume of production already exchanged — on the order of 817,844 documents and 3,380,062 pages — underscores that meaningful review and follow-up discovery cannot be compressed into the weeks now remaining. (Defs.' Opp. (ROA 2188).)

Third, percipient and expert discovery on the case as a whole is incomplete, and Defendants' own proposal contemplates production of additional non-privileged materials as late as September 8, 2026. (Defs.' Opp. (ROA 2188).)

The rule 3.1332(d) factors do not counsel otherwise. Defendants' principal asserted prejudice is financial and scheduling. The Court takes seriously the conflict presented by Mr. Ferrera's federal criminal trial set for May 4,

		2027 (Defs.' Opp. (ROA 2188); Weber Decl. (ROA 2205)), and accounts for it below by setting trial to commence in April 2027 rather than later, consistent with Defendants' own suggestion that March 2027 could work. The interests of justice favor deciding these substantial claims on the merits rather than defaulting to dismissal by operation of the calendar. **B. The Five-Year Period Is Extended** Two independent, cumulative grounds extend the five-year period beyond the current December 17, 2026 date. **The 78-day settlement/futility period**. The time during which a settlement agreement is in effect tolls the five-year period, because bringing an action to trial when the parties have resolved their dispute would be futile. (Seto v. Szeto, supra, 86 Cal.App.5th at p. 87.) The parties treated this case as settled from June 4, 2025 until the settlement fell through and the case was returned to the trial track on August 21, 2025 — a period of 78 days. Defendants do not dispute that this period is excluded, and concede it moves the deadline from December 17, 2026 to approximately March 5, 2027. (Defs.' Opp. (ROA 2188); Reply (ROA 2212).) **The impracticability of completing discovery on the trade secret claims**. Independently, the Court finds under section 583.340(c) that bringing this action to trial has been rendered impracticable by causes beyond Balt's reasonable control from July 30, 2026 forward. The trade secret claims were added only after documents bearing Balt's asserted trade secrets were produced in late May 2026; the discovery necessary to try those claims cannot begin until the section 2019.210 designation dispute is resolved on September 11, 2026; substantial repository and forensic-production disputes remain before the Referee; and Defendants are entitled to move for summary judgment on the new claims, which must be heard no later than 30 days before trial. Balt has prosecuted the case with reasonable diligence — including extensive motion practice to compel production — and the obstacles to readiness are not of its making. (Bruns v. E-Commerce Exchange, Inc., supra, 51 Cal.4th at pp. 730–731.) These are precisely the "excessive and unreasonable difficulty" circumstances the impracticability exception addresses. (Brunzell Constr. Co. v. Wagner, supra, 2 Cal.3d at pp. 551–552.) The extension to April 26, 2027 rests on the two grounds acting together. The 78-day settlement exclusion, standing alone, moves the deadline only to on or about March 5, 2027 — a date that precedes the continued trial date — so that exclusion by itself would not render an April 26, 2027 trial timely. The section 583.340(c) impracticability exclusion is therefore necessary: excluding the period from July 30, 2026 forward through the current trial date (a conservative measure), together with the 78-day settlement period, extends the deadline to on or about July 23, 2027 (Reply (ROA 2212)), and an April 26, 2027 trial falls comfortably within that period.

The Court need not fix that outer date with precision. It adopts the extension as necessary to permit completion of percipient and expert discovery — in the case generally and on the trade secret claims in particular — and to accommodate the statutory summary-judgment track described below.

5. The Critical Path and Resulting Trial Date

The Court sets the new trial date by working forward from the assumptions the parties' filings make realistic, and backward from Defendants' statutory right to move for summary judgment. Each increment is tied to a concrete legal or practical requirement.

Step	Event	Date	Basis
1	Trade secret designation dispute resolved (Sonorous section 2019.210 motion, heard 9/11/26)	On or about Sept. 30, 2026	Trade-secret discovery cannot commence until the trade secret is identified with reasonable particularity. (Code Civ. Proc., § 2019.210.)
2	Fact and expert discovery window — 60 days for each side	Close on or about Nov. 30, 2026	Reasonable opportunity to complete percipient and expert discovery on all claims, including the new ones.
3	Summary-judgment motion served and heard (≈115-day window: not less than 81 days' notice plus the 30-day pre-trial buffer)	Served by on or about Jan. 5, 2027; heard by on or about Mar. 27, 2027	A summary-judgment motion must be served at least 81 days before the hearing and heard no later than 30 days before trial. (Code Civ. Proc., § 437c, subd. (a)(2)–(3).)
4	Additional 30 days from summary-judgment hearing to trial	To trial	The 30-day pre-trial hearing deadline. (Code Civ. Proc., § 437c, subd. (a)(3).)

5	Trial	April 26, 2027	Sum of the increments (≈ April 23, 2027, set to the next court Monday).

The Court acknowledges that the exact figures involve judgment: the discovery period and the placement of the summary-judgment motion could reasonably shift by days or a few weeks. The critical path is intended to guarantee that Defendants retain their statutory right to a summary-judgment motion on the trade secret claims heard no later than 30 days before trial (Code Civ. Proc., § 437c, subd. (a)(3)), while giving both sides a genuine 60-day window to complete percipient and expert discovery once the designation dispute is resolved. Setting trial in late April 2027 also keeps the civil trial ahead of Mr. Ferrera's May 4, 2027 federal criminal trial to the extent practicable.

6. Order

1. The motion to continue trial is GRANTED. **Trial is continued from December 7, 2026, to April 26, 2027.**

2. The Court finds under Code of Civil Procedure section 583.340(c) that bringing this action to trial was impracticable, for causes beyond Balt's reasonable control, during the period beginning July 30, 2026, and further finds the 78-day settlement period (June 4–August 21, 2025) excluded as futile. (Seto v. Szeto, supra, 86 Cal.App.5th at p. 87.) The five-year period under Code of Civil Procedure section 583.310 is extended accordingly, such that a trial commencing April 26, 2027 is timely; the mandatory dismissal provisions of Code of Civil Procedure section 583.360 do not require dismissal.

3. The following pretrial deadlines are set (subject to adjustment for good cause):

   a. Trade secret designation issues to be resolved on or about September 30, 2026;

   b. Fact and expert discovery cutoff: November 30, 2026;

   c. Deadline to serve any motion for summary judgment or adjudication: on or before January 5, 2027, to be heard no later than March 27, 2027; and

   d. **The Pretrial Conference is set for April 9, 2027, at 10AM**.

   e. All other pretrial and pretrial-conference deadlines to be reset by reference to the April 26, 2027 trial date under the Code of Civil Procedure and this Court's local rules.

		4. The parties shall meet and confer and submit a proposed amended scheduling order conforming to this ruling within 10 court days.